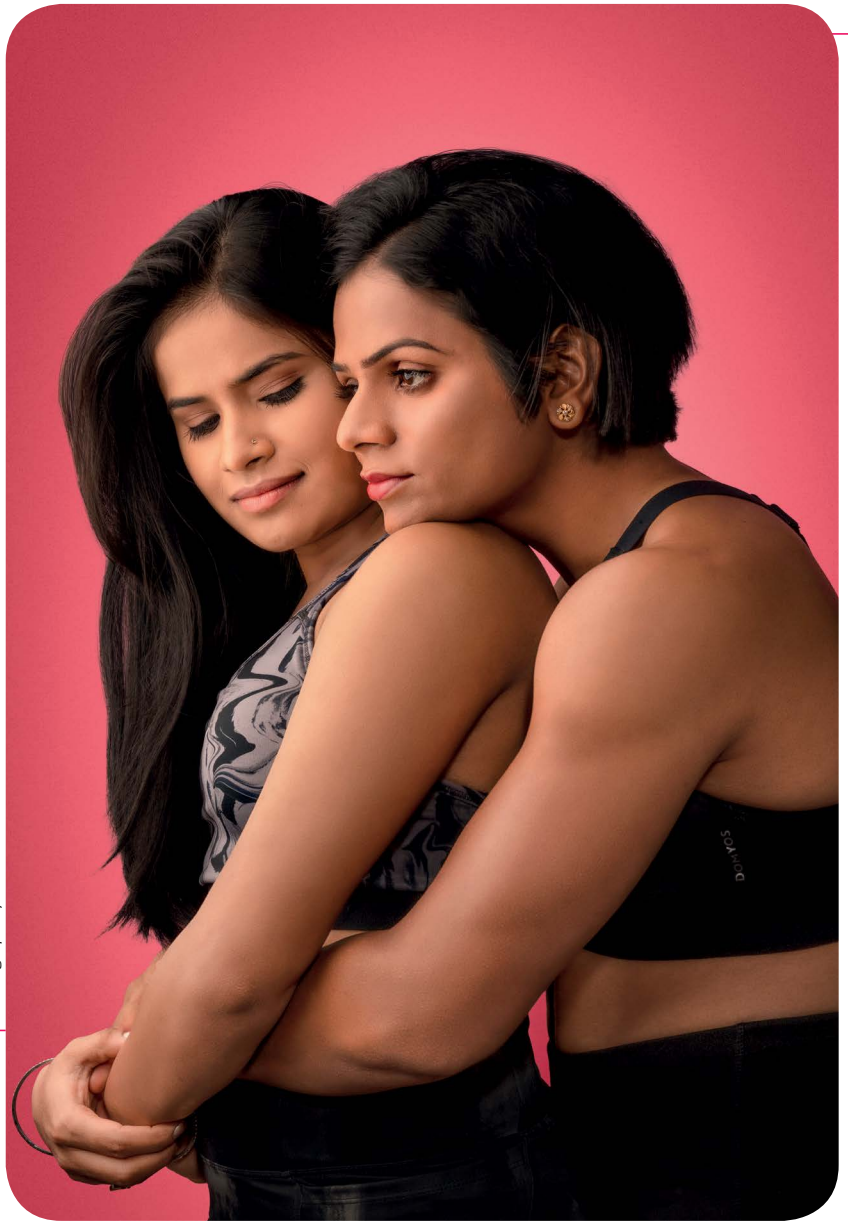
even though its leadership has in the past endorsed same-sex relationships. "You can live with anyone you like," says RSS general secretary Dattatreya Hosabale, "but in the Hindu philosophy of life, marriage is a *sanskar*. It is not an instrument of only enjoyment. Neither is it a contract...the institution may require some reform, but marriage will always take place between a man and a woman."

Mythologist Devdutt Pattanaik disagrees with this reductive interpretation of Hindu philosophy and reminds everyone how what are seen as transgressive practices today enjoyed acceptability in the past. "Hindu mythology celebrates the diverse," he says. "There is space for everyone, provided it is based on *dharma*: compassion, reciprocity and social responsibility."

The government and the RSS, however, have found an unlikely ally in former Union minister and lawyer Kapil Sibal, who is representing the Jamiat Ulama-i-Hind on the issue in the courts. The organisation, in its submission in the court, strongly opposed same-sex marriage as "Islam's prohibition of homosexuality has been categorical from the dawn of the religion of Islam itself". Saying that the institution of marriage needs to be seen as an "organic evolution of custom" rooted in "societal standards and morality", Sibal has argued that the marriage of heterosexual couples has stood the test of time because it has received acceptance at all three levels—by individuals, family and society. "If you want to equate same-sex unions with heterosexual ones, you need all the elements that go into heterosexual unions being recognised," Sibal told the court.

The government has also raised alarm on the effect same-sex marriages will have on several related issues, such as the psychology of a child brought up by a homosexual couple. In fact, one of the most contentious issues raised in this court battle is the rights of the same-sex couples to adopt children.



Photograph by **BANDEEP SINGH**

That same-sex couples cannot procreate has been used as one of the strongest arguments against legalising same-sex marriages. "Absence or restraint on procreation has resulted in an ageing population in many countries, posing a serious problem to their existence. Marriage without the purpose of procreation would lead to the death of the nation," says advocate Rakesh Dwivedi, representing the BJP-led Madhya Pradesh government.

The litigants vehemently oppose this assumption. Support for them came from the Indian Psychiatric Society (IPS), the country's leading mental health group, when it argued that allowing same-sex family units would promote their inclusion in society. Even the Delhi Commission for the Protection of Child Rights (DCPCR) has backed same-sex marriages as well as adoption by homosexual couples. It has said there is no empirical data to suggest that same-sex couples are unfit to be parents, or psychosocial development among the children of same-sex couples is compromised.